Schreiber Dynamix Dairies Pvt Ltd vs State Of Haryana And Anr on 14 November, 2023 Author: Pankaj Jain Bench: Pankaj Jain Neutral Citation No:=2023:PHHC:144407

2023:PHHC:144407
IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

Reserved on 11th of August, 2023
Pronounced on 14th of November, 2023

1. CRM-M-11125-2016
2. CRM-M-11126-2016 (O&M)

Schreiber Dynamix Dairies Private Limited ....Petitioner

Versus

State of Haryana and another .....Respondents

CORAM: HON'BLE MR. JUSTICE PANKAJ JAIN

Present : Mr. R.S. Cheema, Senior Advocate with Mr. Rajesh Batra, Advocate, Mr. Satish Sharma, Advocate and Mr. Sidharth Bhukkal, Advocate for the petitioner(s).

Mr. Ramesh K. Ambavta, AAG, Haryana.

PANKAJ JAIN, J. The petitioner has invoked jurisdiction of this Court under Section 482 Cr.P.C. seeking quashing of complaint No.256/2011 dated 13th of June, 2011 titled as 'State through Government Food Inspector vs. Mukesh Batra' and subsequent proceedings thereto including order dated 13th of June, 2011 and that dated 21st of March, 2014 whereby process has been ordered to be issued qua the petitioner-company by Chief Judicial Magistrate, Rohtak in exercise of power under Section 20A of the Prevention of Food Adulteration Act, 1954 (hereinafter referred to as 'the 1954 Act').

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2. Complaint was moved by Food Inspector, Rohtak (respondent No.2) alleging violation of Section 7 of the Act claiming that the statement made by the petitioner on the label of the sample is to the effect : 'World's No.1 Juice Brand' is misleading and misbranded and thus amounts to violation of Rule 37 of the Prevention of Food Adulteration Rules, 1955 (hereinafter referred to as '1955 Rules').

Along with the complaint report of Public Analyst was filed. Vide impugned order dated 13th of June, 2011, Chief Judicial Magistrate, Rohtak ordered the complaint to be treated as warrant case and vide order dated 21st of March, 2014 (Annexure P-2) process stands issued against the petitioner-company.

3. Ld. Senior Counsel representing the petitioner submits that the complaint preferred against the petitioner is completely silent w.r.t.

commission of any offence. Rule 37 of 1955 Rules mandate that there should not be any false or misleading statement concerning the food contained in the package or concerning the quality or the nutritive value or in relation to the place of origin of the said food. The statement that forms gravamen of the allegation in the complaint i.e. 'World's No.1 Juice Brand' does not concern the food contained in the package or the quality or the nutritive value or in relation to the place of origin of the said food and thus the same would not constitute offence as defined under Rule 37 of the 1955 Rules. It is further being 2 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 claimed by learned Senior Counsel representing the petitioner that as per the scheme of the legislation in form of PFA Act and Rules thereunder it is the claim w.r.t. nutritional value of the food item that can form basis of prosecution. So far as statement w.r.t. the petitioner being No.1 Juice Brand is concerned, the same does not concern the food item contained in the package and apart therefrom the claim is not false. The brand of the petitioner i.e. Tropicana is indeed No.1 brand in packaged 100% juice in the world and in order to hammerforth his contention reliance has been placed by Senior Counsel on certificate issued by Euromonitor International placed on record as Annexure P-10. In furtherance of his contention Senior Counsel relies upon the law laid down in the case of 'Parakh Food Limited vs. State of Andhra Pradesh and another', (2008) 4 SCC 584, 'Bal Kishan Thapar vs. Muncipal Corporation of Delhi', (1979) 2 SCC 459, 'Smt. Sukhrani (dead) by LRs and others vs. Hari Shankar and others', (1979) 2 SCC 463, 'Municipal Corporation of Delhi vs. Bal Krishan Thaper', Criminal Revision No.58 of 1973 decided on 6th of August, 1974, 'State vs. Virubatchi and others', Criminal Appeal No.848 of 1977 decided on 29th of September, 1978, 'R. Nagarajan and another vs. The Food Inspector, Penyakulam Municipality, Theni District', 2009(3)

MWN (Cr.) 85, 'Kaliaperumal @ Perumal vs. K. Ramesh and 3 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 others', 2009 (3) MWN (Cr.) 87, 'Sterling Agro Industrial Ltd. and another vs. State of Uttarakhand', 2014 SCC OnLine Utt 147 and 'Tata Chemicals Ltd. through its Authorized Representative vs. State of U.P., through the Secretary, Ministry of Health and Family Welfare, Secretariat, Lucknow and others', 2017 SCC OnLine All 3771.

4. Per contra, State Counsel submits that as per Rule 32 read with Rule 37 prepackaged food should not carry any label which is misleading or deceptive or is likely to create erroneous impression regarding its character. 'Misbranded' for the purposes of the Act has been defined under Clause 2(ix) of the 1954 Act. An article of food as per the definition enumerated thereunder shall be deemed to be misbranded if the label on the package is deceptive. It is being contended that the packaged food in question is a ready to serve fruit beverage and not a fruit juice, thus by making a statement on the label, "World's No.1 Juice Brand" an effort has been made by the petitioner to deceive the consumers and pass on ready to serve fruit beverage as a fruit juice which would fall within the definition of misbranded ibid.

5. I have heard rival contentions raised by counsel for the parties and have gone through records of the case.

6. The issue that arises for consideration of this Court is :

'whether while exercising jurisdiction under Section 482 Cr.P.C., 4 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 this Court at this stage can quash the proceedings holding that the statement made by the manufacturer on the label of the food item does not constitute an offence punishable under the Prevention of Food Adulteration Act, 1954 as the same does not amount to 'misbranding'?' 7. Relevant provisions of 1954 Act that need to be perused for adjudication of the present case read as under :

"2(ix) "misbranded"--an article of food shall be deemed to be misbranded-- (a) if it is an imitation of, or is a substitute for, or resembles in a manner likely to deceive, another article of food under the name of which it is sold, and is not plainly and conspicuously labelled so as to indicate its true character; (b) if it is falsely stated to be the product of any place or country; (c) if it is sold by a name which belongs to another article of food; (d) if it is so coloured, flavoured or coated, powdered or polished that the fact that the article is damaged is concealed or if the articles is made to appear better or of greater value than it really is; (e) if false claims are made for it upon the label or otherwise; (f) if, when sold in packages which have been

sealed or prepared by or at the instance of the manufacturer or producer and which bear his name and address, the contents of each package are not conspicuously and correctly stated on the outside thereof within the limits of variability prescribed under this Act; (g) if the package containing it, or the label on the package bears any statement, design or device regarding the ingredients or the substances contained therein, which is 5 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 false or misleading in any material particular; or if the package is otherwise deceptive with respect to its contents; (h) if the package containing it or the label on the package bears the name of a fictitious individual or company as the manufacturer or producer of the article;

(i) if it purports to be, or is represented as being, for special dietary uses, unless its label bears such information as may be prescribed concerning its vitamin, mineral, or other dietary properties in order sufficiently to inform its purchaser as to its value for such uses;

(j) if it contains any artificial flavouring, artificial colouring or chemical preservative, without a declaratory label stating that fact, or in contravention of the requirements of this Act or rules made thereunder;

(k) if it is not labelled in accordance with the requirements of this Act or rules made thereunder;

7. Prohibition of manufacture, sale, etc., of certain articles of food.--No person shall himself or by any person on his behalf manufacture for sale, or store, sell or distribute--

    (i) any adulterated food;
    (ii) any misbranded food;
    (iii) any article of food for the sale of which a licence

is prescribed, except in accordance with the conditions of the licence;

(iv) any article of food the sale of which is for the time being prohibited by the Food (Health) Authority 1 [in the interest of public health;] 2***]

(v) any article of food in contravention of any other provision of this Act or of any rule made thereunder; 3[or] 3 [(vi) any adulterant.] 4[Explanation--For the purposes of this section, a person shall be deemed to store any adulterated food or misbranded 6 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 food or any article of food referred to in clause (iii) or

clause (iv) or clause (v) if he stores such food for the manufacture there from of any article of food for sale.]

20. Cognizance and trial of offences.--(1) [No prosecution for an offence under this Act not being an offence under section 14 or section 14A] shall be instituted except by, or with the written consent of, [the Central Government or the State Government 5[*] or a person authorised in this behalf, by general or special order, by the Central Government or the State Government 5[*]]:

Provided that a prosecution for an offence under this Act may be instituted by a purchaser 6[or recognised consumer association] referred to in section 12, 7[if he or it produces] in court a copy of the report of the public analyst along with the complaint. 8[(2) No court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try any offence under this Act. (3) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an offence punishable under sub-section (1AA) of section 16 shall be cognizable and non-bailable).] [20A. Power of court to implead manufacturer, etc.-- Where at any time during the trial of any offence under this Act alleged to have been committed by any person, not being the manufacturer, distributor or dealer of any article of food, the court is satisfied, on the evidence adduced before it, that such manufacturer, distributor or dealer is also concerned with that offence, then, the court may, notwithstanding anything contained in 2[sub-section (3) of section 319 of the Code of Criminal Procedure, 1973 (2 of 1974)] or in section 20 proceed against him as though a prosecution had been instituted against him under section 20.] 7 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 Relevant provisions of 1955 Rules read as under :

"37. Labels not to contain false or misleading statements :- A label shall not contain any statement, claim, design, device, fancy name or abbreviation which is false or misleading in any particular concerning the food contained in the package, or concerning the quantity or the nutritive value or in relation to the place of origin of the said food : 1[Provided that this rule shall not apply in respect of established trade or fancy names of confectionery, biscuits and sweets such as Barley Sugar, Bulls Eye, Cream Cracker, or in respect of aerated waters such as Ginger Beer or Gold Spot or any other name in existence in international trade practice.] xxxx 32. Every prepackaged food to carry a label. - (a) General - (1) Prepackaged food shall not be described or presented on any label or in any labelling manner that is false, misleading or deceptive or is likely to create an erroneous impression regarding its character in any respect. (2) Label in prepackaged foods shall be applied in such a manner that they will not become separated from the container. (3) Contents on the

label shall be clear, prominent, indelible and readily legible by the consumer under normal condition of purchase and use. (4) Where the container is covered by a wrapper, the wrapper shall carry the necessary information or the label on the container shall be readily legible through the outer wrapper or not obscured by it. (b) Labelling of prepackaged foods- Every package of food shall carry the following information on the label.

(1) The name of the food .-The name of the food shall include trade name or description of food contained in the 8 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 package.

(2) List of ingredients .-Except for single ingredient foods, a list of ingredients shall be declared on the label in the following manner:- -

(i) the list of ingredients shall contain an appropriate title, such as the term "ingredients";

(ii) the name of ingredients used in the product shall be listed in descending order of their composition by weight or volume, as the case may be, at the time of its manufacture;

(iii) where an ingredient itself is the product of two or more ingredients, such a compound ingredient shall be declared in the list of ingredients, and shall be accompanied by a list, in brackets, of its ingredients in descending order of weight or volume, as case may be:

xxxx" 8. 1954 Act contemplates prohibition of manufacture, storing, sale or distribution of any adulterated and misbranded food. It provides measure to prevent adulteration and also provides for laying down food standards and prohibiting import of certain objectionable articles of food items. The primary object of the Act is to prevent supply of adulterated and misbranded food-stuff in the interests of the health of the community. Misbranded food is prohibited under Section 7 of the Act. By misbranding the legislature meant an act of deception and falsehood w.r.t. the contents of the food item. 1955 Rules framed under 1954 Act extensively deals with packaging and labelling of foods. Rules 32 provides that the label of prepackaged 9 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 food should not be deceptive regarding its character in any respect. Likewise Rule 37 provides that the label should not contain any statement, claim, design, device, fancy name or abbreviation which is false or misleading in particular regarding the food contained in the package or concerning the quantity or the nutritive value or in relation to the place of origin of the said

food. The provision has fallen for consideration before the various Courts. 9. Apex Court in the case of Parakh Food Limited vs. State of Andhra Pradesh and another (supra) held as under :

'10. Keeping the above principle in mind, the words "such other" as used in Rule 37 D is to be read along with the subject matter in which they have been used. The residuary clause of the rule has to be read in light of the ten prohibited expressions, and it becomes clear that what is prohibited are only the expressions which are an exaggeration of the quality of the product. 11. In the present case, it is true that the appellant has used pictures of vegetables on the label of the product which is refined soyabean oil, which according to the appellant is to depict the purpose for which the oil can be used, viz., preparation of the vegetables depicted thereon. Unless the picture depicted on a label of edible oils and fats exaggerates the quality of the product, it would not fall within the mischief of Rule 37 D. In the present case, the vegetables shown on the label of soyabean oil does not in any way indicate that the quality of soyabean oil is 'super-refined', 'extra-refined', 'micro-refined', 'double-refined', 'ultra-refined', 'anti-cholesterol', 'cholesterol fighter', 'soothing to heart', 'cholesterol friendly', 'saturated fat free' etc., nor it indicates the exaggeration towards the quality of the product to come within the mischief of Rule 37D of the PFA Rules. In our opinion the High Court has committed a serious 10 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 error in arriving at a finding that the article of food (soyabean oil) was misbranded since the picture contained on the label has nothing to do with the article of food in question, completely ignoring the fact that the article of food can be used for cooking the vegetables shown in the picture which cannot be said to be exaggerating the quality of the food in question.'

10. Delhi High Court in the case of Municipal Corporation of Delhi vs. Bal Krishan Thaper (Criminal Revision No. 58 of 1973) (supra) held as under :

"9. I have earlier found that what the respondent purported to sell was Saccharin-which in fact was not Saccharin but an admixture of Glucose and Saccharin. The quantity of Saccharin in the two samples was negligible. The labels on the packages are suggestive that the article of food is Saccharin or that the contents possess the qualities, including that of sweetness, of Saccharin. There can be little doubt that the labels on the samples did not indicate the true nature of their contents. The statements on the labels could deceive or mislead a purchaser that the article of food is Saccharin or in any case a substitute for Saccharin. Rule 37 of the rules framed under the Act provides that a label shall not contain any statement, claims design, device fancy name or abbreviation which is false or misleading in any

particular concerning the food contained in the package, or concerning the quantity or the nutritive value or in relation to the place of origin of the said food. In Municipal Corporation of Delhi v. Thou Ram, I.L.R. (1974) 1 Delhi 648. Jagjit Singh J. and myself held that "an article of food shall be presumed to be misbranded if it resembles in a manner likely to deceive another article of food under the name of which it is sold and is not plainly and conspicuously labelled so as to indicate its true character. No general rule can be/laid down as to what is and what is not a colourable variation. All that can be said is to 11 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 ascertain in every case whether there is such a resemblance as to deceive a purchaser using ordinary caution." It was further held that "the declaration by the respondent that 'barfi' was prepared from 'basin', sugar and 'Khoa' was clearly false, and that the addition of small quantity of milk fat, if at all, was only a colourable variation to deceive a purchaser."

11. Further High Court of Madhya Pradesh in the case of 'Pepsico India Holdings Pvt. Ltd. & Another vs. State of Madhya Pradesh Through Food Inspector' M.Cr.C. No.6848/2011, decided on 18th of June, 2019 held as under :

"23. That as regarding violation of Section 5, the said Section relates to import of any adulterated or misbranded food or violation of terms of licence. Section 5 of the Act reads as under :- 5. Prohibition of import of certain articles of food - No person shall import into India - (i) any adulterated food; (ii) any misbranded food; (iii) any articles of food for the import of which a licence is prescribed, except in accordance with the conditions of the licence; and (iv) any article of food in contravention of any other provision of this Act or of any rule made there under. 23. That even as per the report of the Public Analyst, the sample of the food was found confirming to the standards. Admittedly, the product Quaker Oats is imported and repacked in India. Thus, the Label Declaration was only made after the stage of re-packing, admittedly, when the package was brought in India for re-packaging there was no violation of any label Declaration. Even otherwise, as the sample does not in any way violate Rule 37 or Rule 39 and as the sample confirmed to the standards even as per report of the Public Analyst, there is no 12 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 question of violation of Section 5 of the Food Adulteration Act, 2012.

24. The Apex Court in Para - 9 of the case of Selva Kumar v. State reported in 2010 SCC Online Mad 4280 has held as under :-

25. A perusal of the public analyst's report would reveal the Public Analyst has simply stated that the sample was misbranded since it is not labelled in

accordance with the requirements of Rule 37 of P.F.A. Rules 1955, but he has not mentioned as to how and what manner the sample was misbranded. There must be a specific averment that the customers being mislead on account of misbranding and in the absence of any such clear averments, it cannot be said that the customers are mislead or misdirected.

26. In Para - 17 and 18 of the case of Nestle India Limited v. State of Maharashtra [(2012) SCC Born 863] the Apex Court has held as under :-

27. The plain reading of the said provision, on the backdrop of the words mentioned on the label of the food products, namely, the "Maggi Noodles" and "Maggi Teekha Masala Sauce", I find considerable merit in the submissions of Shri Sunil Manohar, the learned Senior Counsel for the petitioner. The requirement as suggested by the provisions of rule 39 is the words recommended by the medical profession or any such words implying or suggesting that the food is recommended, prescribed or approved by the medical practitioner is certainly with a view to prohibit or sale of such a food product which would create an impression in the mind of purchaser that as the product is recommended by the medical profession or medical practitioner, it is beneficial for his health. The object is certainly laudable i.e to prevent the general public from misleading claims of the manufacture or the seller of food product. On this touchstone if the labels are scanned and assessed with the objectivity, one would find that the words used on the label are the statement of facts. In the case of the product, namely "Maggi Noodles", the words reflected about the protein and calcium and the product "Maggi Teekha Masala Sauce" is packed with protein and calcium is merely a statement of facts. The label nowhere suggests that the said product is recommended by the medical profession or medical practitioner so as to meet the requirement under Rule 39. Insofar as the nutrient values contained in the product, the data is 13 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 separately reflected on the label. In view of these facts, the conclusion arrived at by the authority passing the order dated 10.12.2009 i.e the Food Inspector and Licensing Authority is certainly erroneous. The order also suffers from a mechanical approach by the authority as the petitioner/company in its reply submitted that the statements about the protein and calcium are the statements of facts and the submission in the reply that there is nothing on the label either in clear words or any such words to imply with the product is recommended, prescribed or approved by any medical practitioner or is approved for medical purpose. The appellate authority substituted its own reasons namely about the words on label were in the nature that the appellant's

> distributor has introduced advertisement of contents of protein and calcium. Now this was not the charge levelled against the petitioner/company. As there was nothing in that respect either in the notice or in the order passed by the Food Inspector and Licensing Authority, the petitioner had no opportunity to meet these substituted charges by the appellate authority. The same is the case about further observation of the appellate authority in respect of one GSR 664(E). The appellate authority observed that as per the said new GSR 664(E), the petitioner has suppressed the facts. The appellate authority further observed that in the product "Maggi Noodles", the main ingredient is the wheat fine flour and the petitioner/company has made the statements on the label about the value of protein and calcium. Suppressing the fact that the main ingredient of the product "Noodles" is wheat fine flour which contains proportion of Carbohydrates in excess. This is also not a charge levelled against the petitioner/company. The notice issued to the petitioner along with the report of Public Analyst of State Public Health Laboratory refers to the contents on the label and particularly about the protein and calcium. In view of these facts, the appellate authority's observations about the petitioner misguiding the consumers by suppressing the fact that the noodle's main ingredient is wheat fine flour is erroneous. The appellate authority's order in respect of the product "Maggi Teekha Masala Sauce" is also erroneous. While considering the report of the Public Analyst and the objection of the Food Inspector, Wardha in respect of the contravention of Rule 39, reference is made to the words, "Tomatoes are a good source of lycopene - an antioxidant which would strengthen your body's natural defenses". Here also reference is made to GSR 664 and further it is observed by the appellate authority that the main ingredient in the product is only four per cent of tomato base and the 14 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 general consumer is likely to mislead by the words appearing on the label as to, "Tomatoes are a good source of lycopene - an antioxidant which would strengthen your body's natural defenses"

and as such it contravenes Rule 39. Reading the words appearing on the label as it is, it only reflects a general statement that the "Tomatoes are a good source of lycopene - an antioxidant which would strengthen your body's natural defenses". The label nowhere suggests that the product "Maggi Teekha Masala Sauce" is either recommended by medical practitioner or recommended for medical purpose by medical practitioner. In that effect, the observation of the appellate authority that the petitioner/company through the label making an advertisement of its product showing that the product contains large scale of lycopene; whereas lycopene proportion is very minimal in the product and as such the consumer is being

misguided. These observations of the appellate authority are far- fetched. 18. Taking overall view of the matter, I am of the considered opinion that there is considerable merit in the submission of Shri Sunil Manohar, the learned Counsel for the petitioner that the charge levelled against the petitioner/company in respect of contravention of Rule 39 of PFA Rules is unsustainable. 26. Para - 14 of the case of P. Robert Immanuel & Ors. v. The State reported in 2009 (2) MWN (Cr) 4546 are relevant which reads as under :- 14. The said private complainant has only relied on the Public Analyst report for misbranding of the label. As stated earlier misbranding of label does not require Public Analyst opinion and the Food Inspector, who had drawn samples had not mentioned anything about the label of beverage bottles. It is pertinent to note that the beverage is not adulterated. In my considered view, the petitioner is not liable to be prosecuted as the respondent Food Inspector who had the occasion to see the beverage bottles did not mention anything about the misbranding and it does not require the opinion of the Public Analyst. 27. In the light of the aforesaid judgments, the present miscellaneous criminal case is allowed. The impugned order dated 14/12/2010 is hereby set aside as well as the proceedings 15 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 and Complaint under section 7 and 16 of the Prevention of Food Adulteration Act, 1954 is, hereby quashed."

12. Thus, the legal position that emerges from the aforesaid precedents interpreting Rule 37 and other provisions of the 1954 Act is :

(i) If the package containing article of food or label on the package bears any statement, design or device regarding the ingredients or the substances contained therein which is false or misleading in any material particular or if the package is otherwise deceptive w.r.t. its contents, the same would mean 'misbranding'; (ii) 'Misbranded' food is prohibited; (iii) Rule 37 of the Rules framed under 1954 Act prohibits label from containing any statement, claim, design, device, fancy name or abbreviation which is false or misleading in any particular concerning : (a) the food contained in the package; or (b) the quantity; or (c) the nutritive value; or (d) in relation to place or origin of the said food.

13. In the present case the State claims deception. The

petitioner claims that the statement alleged to be deceptive does not 16 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 concern the food article contained in the package, thus it can't be alleged to be 'misbranded'. 14. While weighing the aforesaid rival stands this

Court has to keep in mind the consumer of the food item. The statement made is in English language which is not native. Many of the customers in India know the meaning of 'juice' but are not conversant with word 'brand'.

To answer 'whether the statement made on the label is deceptive or not', the standard to be applied is not of vigilant consumer but of an unwary normal consumer of the products offered by the petitioner. A normal consumer is a man of imperfect recollection and statement on the label affects him. The Court has to put itself in the position of an average customer and ask a question whether the food article is being passed off creating deception. The likelihood of confusion or deception is to be seen in relation to average unwary customer. Food article is not juice. Allegation is that the consumer is being misled to believe food article as juice. The fact of the food article being passed off deceptively as juice is to be determined or ruled out. It is definitely matter of evidence. Thus at this stage to hold that the statement i.e. 'The World's No.1 Juice Brand' does not amount to deception and would thus not constitute 'misbranding' would be beyond the scope of Section 482 Cr.P.C.

15. In view of above, this Court finds that at this stage a 17 of 18 Neutral Citation No:=2023:PHHC:144407 CRM-M-11126-2016 (O&M) 2023:PHHC:144407 finding that the statement contained on the label does not amount to misbranding of the product cannot be recorded.

16. Resultantly, the present petitions are ordered to be dismissed.

17. A copy of this order be kept on the file of other connected case.

November 14, 2023 (PANKAJ JAIN) Dpr JUDGE Whether speaking/reasoned : Yes Whether reportable : Yes

[Cites 7, Cited by 5] Calcutta High Court Consumer Unity And Trust Society vs State Of West Bengal And Ors. on 11 April, 1989 Equivalent citations: (1989)2CALLT179(HC) JUDGMENT

P.K. Mukherjee, J.

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1. The present writ petition, was moved before me on September 5, 1988 challenging, inter alia, and praying for a writ in the nature of Mandamus, commanding the respondent-authorities, to act in accordance with the provisions of Essential Commodities Act 1955, Food Products Order 1955 and the Prevention of Food Adulteration Act 1954 and to confiscate the article under the name 'Frooti' and 'Appy' under the aforesaid Acts of 1955 and the Act of 1954.

2. This Court, upon hearing Mr. Pradip Singh Mehta, who appeared in person, had issued the Rule in terms of prayers (a), (b), (c) and (d) of the writ petition on September 5, 1988 and directed the writ petitioner to serve copies of the writ petition to respondent Nos. 4, 5 and 6 and further ordered that the prayer for an appropriate interim order would be considered on September 12, 1988 only after hearing the respondents, in particular the respondent No. 12, i.e., Parle Beverages Private Ltd. (Agro Division), hereinafter referred to as respondent Company.

3. On the said date, this Court granted leave to the writ petitioner to add the Director, Central Food Laboratory, 3 Kyd Street, Calcutta as a party, respondent No. 13 in the instant writ petition.

4. On September 12, 1988 this Court upon hearing the petitioner in person and Mr. Somnath Chatterjee for the respondent Company did not grant any interim order and on September 19, 1988 this Court directed the Director, Central Food Laboratory, 3 Kyd Street, Calcutta-16 "to analyse" the samples of the product known as 'Frooti' and 'Appy' subject to payment of fees of Rs. 40, which was directed to be paid by the petitioner, in terms of Sub-clause 6 of Rule 4 of the F.P.O. Rules, 1955.

5. As no reports could be available on September 19, 1988 this Court granted limited injunction and thereby restrained the respondents from making any advertisement through "mass media" which was however stayed in appeal preferred by the respondent Company.

5a. The writ petition came up for final hearing before me on September 26 and November 28, 1988 respectively and judgment was reserved.

6. Mr. Pradip Singh Mehta appearing in person, to establish locus standi of the petitioner, submitted that the main aim and object of the petitioner society in the field of consumer action and referred to several legal actions on behalf of the helpless victims of apathatic business houses and State agencies both

before this Court and the High Court at Jaipur and before the Monopolies and Restrictive Trade Practice Commissioner at New Delhi and acclaimed that the writ petitioner had locus standi to move the present writ petition.

7. He submitted that the petitioner society was recognised by the Department of Company Affairs, Government of India as "Recognised Consumer's Association" under the RTP Act, 1969. It was also claimed by the petitioner that it was a member of the Central Consumer Protection Council, Government of India.

8. It is the case of the writ petitioner that the respondent Company is manufacturing and marketing fruit drinks in packs under the brand names. (1) Frooti (Mango drink) and (2) Appy (Apple drink under licence No. F.P.O. 6990-R granted by the respondent No. 1 in, tetra packs, granted to the respondent Company through licensees all over the country, under different Food Products Licence Nos. granted by the Licensing Authority being the respondent No. 4, under the provisions of the Food Products Order, 1955 enacted under Essential Commodities Act, 1955.

9. It is the further case of the writ petitioner that the respondent company has been permitting the sale of their products directly and indirectly, namely, 'Frooti' and 'Appy' by publishing through printed electronic media hoardings, namely, Boards and wall painting at shops including T.V., newspapers and delivery vans of the company as fruit drinks depicting the picture of mango and apples on their packs as well as in the advertisement one of which appeared in the magazine 'BOMBAY' of April 22 and May 6, 1986. According to the petitioner, the packs of Frooti and Appy did not contain the full details and the actual percentage of the ingredients of the contents of the said fruit drinks, as required under the Essential Commodities Act as well as Prevention of Food Adulteration Act, 1954.

10. Mr. Mehta also drew my attention to Clause 11(1) of the Food1 Products Order, 1955, which runs as follows :

"11(1)-Any beverage which does not contain at least 25 per cent of fruit juice in its composition shall not be described as a fruit syrup, fruit juice, squash or cordial or crush shall be described as a synthetic syrup." 11. Thus, according to the writ petitioner, the Tetra pack of Frooti and Appy nowhere displays that the drinks contained in the pack are "Synthetic Syrup". The Tetra pack contains a written message which is as follows :

"Ingredients : Water, mango pulp, sugar, citric acid and Vitamin C. Contains permitted colours and added flavours" as regards the pack of Frooti is concerned. "Ingredients: Water, sugar, apple juice (Concentrated) citric acid and Vitamin C. Contains permitted colours and added flavours"-as regards the pack of Appy is concerned. From the above it is crystal clear that there is no fruit juice so far as "FROOTI" is concerned, and apple juice (concentrated) so far as Appy is concerned. In any event, both the products do not conform to the standards prescribed under the Fruit Products Order, 1955 and the said Act of 1954. The provision of Clause 11(2) of Fruit Products Order, 1955 are as follows : "Synthetic vinegars, beverages, syrups, sharbats and other products associated with fruits and vegetables shall be clearly and conspicuously marked on the label as the word 'SYNTHETIC wherever used, shall be as bold and in the same size and colour of the letters are used for the name of product and shall immediately precede such name. No container containing any such product shall have anything printed or labelled on it which may lead the consumer into believing that it is a fruit product. Neither shall the work 'fruit' be used in describing such a product nor shall it be sold under the cover of a label, which carries the picture of any fruit." 12. According to the writ petitioner, the respondent company has deliberately and wilfully not printed the word 'SYNTHETIC on the said packs of "Frooti" and "Appy", as required under the provisions of Clause 11(2) of the said Order.

13. It is also contended by the petitioner that assuming that the composition of fruit juice also contains water and sugar in its natural form, the petitioner society wrote to the respondent company at Bombay on or around 8th August, 1988, stating, inter alia, that some consumers felt that fruit drinks manufactured by them did not contain substantial amount of fruit content and therefore it should be described as "Synthetic Beverage" as to the percentage contents of mango pulp, in Frooti and apple pulp, in Appy.

14. The respondent company, however, replied, vide their letter, dated August 16, 1988 stating, inter alia that for any drink it must contain a minimum of 10% juice and as far as Frooti and Appy are concerned, both of them contain substantially higher contents of fruit juice than what is required under the Food Products Rules.

15. According to the petitioner, by the information furnished in their letter, dated August 16, 1988 the respondent company sought to mislead the petitioner society which being an official member of the Central Consumer Protection Council is bound to promote and protect the rights of the consumers provided

in the Consumer Protection Act 1986 which in this instance is the "Right to be Informed" Under Section 6(b) of the said Act and set out hereunder :

"The right to be informed about the quality, quantity, potency, purity, standard and price of goods so as to protect the consumer against unfair trade practice". 16. The writ petitioner further wrote to Superintendence Company of India Ltd. for obtaining certificate regarding the samples of Frooti and Appy and obtained the necessary certificate on July 9, 1988 and August 30, 1988 as set out in Annexure 'G' to the writ petition at pages 43 and 44.

17. It is further alleged that the respondent company has all along been advertising and promoting their drinks through the printed and electronic media as "fruit drinks" which are natural and fresh and enticing consumers, particularly vulnerable children, to consume their products as substitute for natural fruit juices, while in fact manufacturing and selling "synthetic drinks" or just artificially flavoured, coloured sweetened water and not defining it so, thereby causing tremendous harm and loss to the consumers. It is further alleged that through misleading high profile publicity the respondent company has also been indulging in an unfair trade practice, as defined Under Section 36A of the Monopolies and Restrictive Trade Practices Act, 1969 which runs as follows :

"36A. Definition of unfair trade practice. In this part, unless the context, otherwise requires, 'unfair trade practice' means a trade practice which, for the purpose of promoting the sale, was or supply of any goods or for the provisions of any services, adopts one more of the following practices and thereby causes loss or injury to the consumers of such goods or services, whether eliminating or restricting competition or otherwise, namely : (1) The practice of making any statement, whether orally or in writing or by visible representation which : (i) 'Falsely represents that the goods are of a particular standard, quality, grade, competition type or mode'; (4) 'Permits the sale or supply of goods intended to be used or are of a kind likely to be used, by consumers, knowing or having reason to believe that the goods do not comply with the standards prescribed by competent authority relating to performance, composition, contents, design, constructions, finishing or packing as are necessary to prevent or reduce the risk of injury to the person using the goods'. 17a. According to the petitioner, in any event, quality and purity of the product manufactured, marketed and sold by the respondent company are far below the prescribed standard and, as such, the respondent company is not entitled to manufacture or sell the same, as the same falls within the mischief Under Section 2(2) (ix) of the order which runs as follows :

'misbranded'-an article of food shall be deemed to be misbranded- (a) if it is an imitation of, or is a substitute for, or resembles in a manner likely to deceive, another article of food under the name of which it is said, and is not plainly and conspicuously labelled so as to indicate its true character; (b) if it is falsely stated to be the product of any place or country; (c) if it is sold by a name which belongs to another article of food; (d) if it is so coloured, flavoured or coated, powdered or polished that the fact that the article is damaged is concealed or if the article is made to appear better or of greater value than it really is; (e) if false claims are made for it upon the label or otherwise; (f) if, when sold in packages which have been sealed or prepared by or at the instance of the manufacturer or producer and which bear his name and address, the contents of each package are not conspicuously and correctly stated on the outside thereof within the limits of variability prescribed under this Act; (g) if the package containing it, or the label on the package bears any statement, design or device regarding the ingredients or the substances contained therein, which is false or misleading in any material particular; or if the package is otherwise deceptive with respect to its contents; (h) if the package containing it or the label on the package bears the name of a fictitious individual or company as the manufacturer or product of the article; (i) if it purports to be, or is represented as being, for special dietary uses, unless label bears such information as may be prescribed concerning its vitamin, mineral, or other dietary properties in order sufficiently to inform its purchaser as to its value for such uses; (j) if it contains any artificial flavouring, artificial colouring or chemical preservative, without a declaratory label stating that fact or in contravention of the requirements of this Act or Rules made thereunder; (k) if it is not labelled in accordance with the requirements of this Act or Rules made thereunder. 18. The provisions of the Prevention of Food Adulteration Act, 1954 prohibit manufacture, sale, store or distribution of adulterated food and misbranded food. Section 7 of the said Act reads as follows :

"Prohibition of manufacture, sale, etc., of certain articles of food : No person shall himself or by any person on his behalf manufacture for sale or store, sell or distribute- (i) any adulterated food; (ii) any misbranded food; (iii) any article of food for the sale of which licence is prescribed, except in accordance with the condition of the licence; (iv) any article of food the sake of which is for the time being prohibited by the Food (Health) Authority in the interest of public health; (v) any article of food in contravention of any other provision of this Act or of any Rule made thereunder, or (vi) any adulterant." 19. During the hearing of the writ petition, this Court having directed the Director of Central Food Laboratory to give an analysis report of 'Frooti' and 'Appy', whereupon a report was submitted by Sm. G. Biswas, Director, dated 7th October, 1988.

20. Analysis reports of 'Frooti' and 'Appy' are as follows :

Frooti Physical examination = Orange coloured liquid. Manufactured on 21 June, 88. Printed label on the paper container does no contain the quantity of Vit. C as per Rule 33-A. Total solids = 15.3% Total soluble solids = 15.0%. Vitamin C Content = 4.5 mg/100 gms of sample. Formol Number = 1.8%. Albuminoid ammoniacal nitrogen = 80 ppm (w/w). Added colouring matter = Sunset yellow, a permitted coaltar dye present ; quantity being 0.015 gm/kg. Opinion : Sample of "Frooti" (Mango Drink) contains fruit juice but it is misbranded as it contravenes Rule 32-A and Rule 40(3). Appy Physical examination = Golden yellow coloured liquid manufactured on 19th May, 1988. Printed label on the paper container does not contain the quantity of Vitamin C as per Rule 32-A. Total solids= 13.95%. Total Soluble solids= 13.91%. Vitamin 'C' Content 1 3.6 mg/100 gms of sample. Formol Number = 30 ppm (W/W). Added colouring matter = Absent. Opinion : Sample of "Appy" (Apple Drink) contains fruit juice but it is misbranded as it contravenes Rule 37, Rule 32-A and Rule 40(3) of the P.F.A. Rules. 21. According to the petitioner, the so called fruit drinks being promoted and sold in the market are misleading as all show that only natural fruits are contained and do not unambiguously declare that it is diluted motion which is made with more than puffing lines : Fresh N' Juicy/ITS' LIKE BITING AN APPLE/AN APPY A DAY . . . PARLES' by calling their drinks as JUICY mislead the consumers into believing it is a Fruit Juice therefore coming under Rule 11(1) unambiguously.

22. On receiving a complaint regarding the genuineness of the drinks in May 1988, the petitioner approached the Calcutta Municipal Corporation but could not get any reply. According to the petitioner, Paries' FROOTI MANGO, Volfruits' Apple and Treetop Guava are tested at the Government approved laboratory of Superintendence Company of India Private Ltd., which has been referred to hereinabove. It shows that while Frooti has a pulp or concentrate content of only 2.53% the products of Volfruit Treetop has more than 7%, nearly three times more than that of Frooti.

23. In such circumstances, the petitioner had to write on or about August 8, 1988 to the respondent company whereby the petitioner informed that the fruit drinks manufactured by the respondent company did not con tain a substantial amount of fruit and therefore it should be described as "synthetic beverage" and requested the respondent company to inform as to the percentage contents of "mango pulp" in Frooti and "apple pulp" in Appy.

24. In reply to the said letter, the respondent company replied as follows :

"While we do not know exactly what is meant by substantial amount of fruit content, we can only state that as per FPO regulations, who are also our licensing authorities, for any drink to be called a fruit drink it must contain a minimum of 10% juice. If it is less than 10% then it is called a synthetic beverage. As far as Frooti and Appy are concerned, both of them contain substantially higher quantities of fruit juice than what is required under the FPO Rules. We hope this will clarify any doubts that any of your consumers may have about the fruit content." 25. Mr. Samarendra Nath Banerjee, learned Advocate who is appearing for Union of India, has placed reliance on an affidavit-in-opposition affirmed by Sri Omprakash Gora, on behalf of the Union of India, respondent Nos. 1, 2 and 4 wherein the said respondent prayed for condonation of delay and acceptance of the affidavit at a belated stage by this Court.

26. In dealing with the material allegations in the instant writ petition, the said deponent stated as follows :

"It is true that M/s. Parle Beverages (P) Ltd. (Agro Division) Bombay has been granted Relabeller Licence No. 6990-R under the Fruit Products Order 1955 issued under Essential Commodities Act, 1955. This licence has authorised them to relabel fruit products manufactured by bona fide Fruit Products Order Licences. The licence has been issued under the provisions of Fruit Products Order 1955 and Food Products Order, as stated in the writ petition." 27. The deponent further observed that it was the obligation of the respondents to disclose the fact that the grant of licence without subsequent approval of the labels did not permit the party to produce without such approval. The Government on receipt of the letter, dated September 5, 1988 from the petitioner society stated that the respondent company was marketing 'Frooti' and 'Appy' with Fruit Products Order Licence No. 6990-F in Tetra Pack and on checking records the respondent No. 4 was able to find that the label with Fruit Products Order No. 6990-F was received by the Licensing Office only on September 27, 1938, i.e., after the moving of the instant writ petition for approval of the same.

28. The said deponent dealing with the allegations made in paragraph 2 of the writ petition has stated that the question of Clause 11(1) of the Fruit Products Order 1955 was not correct, because the word is not 'if 'but which' conforming with the provisions of law.

29. In dealing with paragraph 9 of the writ petition, the deponent has stated that 'Frooti' Mango Drinks and 'Appy' Apple Drinks are ready to serve Fruit Beverage including Aerated Water containing fruit juice and pulp as laid down in Part II of the second schedule of Fruit Products Order 1955. A xerox copy has been annexed as Annexure 'A'

30. In the said affidavit, the deponent has asserted that the authorities were very much vigilant to exercise the powers vested under the law and the same would be evident from the steps taken by the answering respondent against the respondent No. 12 for using labels for the sale of Frooti and Appy without approval of the Competent Authority.

31. Mr. Dipankar Prosad Gupta, appearing for the respondent company has placed reliance on the affidavit filed on behalf of the respondent company by Sri Bhupendra Parmanand Asher describing himself as the Taxation Manager and Constituted Attorney and also the Principal Officer of the company, has stated that the writ petitioner has mis-stated and suppressed the material facts before this Court which have been set out in the said affidavit.

32. It is also alleged that the writ petition has been filed with an ulterior motive and on an extraneous consideration only to harass the respondent No. 12. The said deponent has raised a jurisdictional point stating, inter alia, that the respondent No. 12 has no office whatsoever in West Bengal leave alone Calcutta. The writ petitioner's Head Office is at Jaipur. The marketing of the products of the respondent No. 12 in West Bengal should not be permitted to be so.

33. It is also alleged that the present writ petition was moved at the behest of rivals and/or trade competitors of the respondent No. 12 to damage the goodwill, reputation and market to abstruct any expansions. The deponent has further asserted that there are several fruit drinks being manufactured and marketed in packs similar to that of the respondent No. 12. The respondent No. 12's fruit drinks have a much higher fruit pulp percentage than other fruit drinks. Similarly the writ petitioner has asked for no relief against any other fruit drink manufacturer in the market.

34. Thereafter, the said deponent has stated the following facts for consideration of this Court:

(i) As stated above, the said fruit drinks have been manufactured and . marketed since 1985/86. (ii) The respondent company duly obtained all the necessary licences for manufacturing and marketing the said fruit drinks under the Fruit Products Order 1955 (hereinafter referred to as "the said Order"). The said licences have been renewed from time to time by the licensing authorities under the said Order after being satisfied that the respondent No. 12 has not violated any of the provisions of the licences or the said order, (iii) The said fruit drinks are not fruit syrups but ready to serve fruit drings and a remarketed as such. The said fruit drinks are not "synthetic beverages" within the meaning of Clause 2(k) of the Fruit Products Order,

1955. The said fruit drinks are prepared with fruit pulp and clarified sugar syrup prepared in treated water with permitted fruit colours. In this connection, the deponent craves leaves to refer to an affidavit of Dr. Gopal Krishna Balchandra Nadkarni, a reputed Food Technologist, a copy whereof is annexed and marked 'A' subsequent to the affirmation of the said affidavit, the fruit guise content of "Appy" has been further increased, (iv) In compliance with Clause 8 of the said order, the respondent No. 22 duly submitted the labels under which the said fruit drinks are packed and marketed to the Licensing Authority who has duly approved the same. Copies of the said approved labels are annexed and marked 'B'. (v) From time to time, the samples of 'Frooti' have been drawn by Food Inspectors under the Prevention of Food Adulteration Act, 1954, Copies of the said sample Notices issued by the Food Inspectors at different places are annexed herewith and collectively marked 'C'. (vi) At no stage, have the Food & Drug Administration Authorities ever raised any objection or complaint in respect of the respondent No. 12's products. The said product, therefore, fully satisfy the standards and requirements of the Prevention of Food Adulteration Act, 1954 and Rules framed thereunder. In fact, by a letter, dated 24th July, 1986/ 20th August, 1986 in Marathi and an unofficial translation thereof are annexed hereto and marked 'D' and 'D1' respectively. (vii) Food drinks cannot be tested for their fruit content except at the point of manufacture. Every fruit contents pulp, sugar, and water in varying percentages. Again every species of every varies in its pulp, sugar, and water content after the manufacturing process it is virtually impossible to differentiate between the added sugar and water and the original fruit and water as contained in the fruit itself. As such the report allegedly obtained by the writ petitioner from Messrs Superintendence of India Pvt. Ltd. is wholly wrong. In the circumstances, by a letter, 16th September 1988, the respondent No. 12 sent the reports of Messrs. Superintendence India Pvt. Ltd. as annexed to the petition to the Central Food Technological Research Institute, Mysore and asked for clarification of their accuracy. The said Central Food Technological Research Institute, Mysore is a Government Undertaking. Samples of the said products 'Frooti' and 'Appy' were also submitted to the said Institute. By their letter, dated 16th September 1988 the said Institute observed that there might be a typographical error in the said reports and that the authors of the reports must have meant solids derived from pulp or concentrate if the fruit product is analysed. The said Institute opines that probably one would have to multiply by a factor of 5 to 6 to arrive at the actual concentration of the pulp or concentrate in the final product. It was further stated therein that it is absolutely necessary to observe the operations at the time of manufacture so that the quantity of pulp/guise used and the syrup mixed with the guise for making the final beverage could be ascertained. 35. Mr. Gupta further has drawn my attention

from the said affidavit where the deponent submitted that the products in question were totally harmless and not injuries to the consuming public. The products in question have been manufactured in accordance with all statutory Rules and Regulations and the products are monitored by the concerned authorities. It was further asserted in paragraph 6 of the affidavit that the questions relating to the interpretation of the said order affected all fruit drinks manufactured and inasmuch as all the other fruit drinks in the market had a lower beverage of fruit pulp than the respondent No. 12's fruit drinks, all other major manufacturers of fruit drinks in India whose names are listed in a schedule annexed herewith and marked 'F' should be added as parties to this proceedings. Name of the manufacturing and that of the product are :

Name of the Company	Names of the product

1. Messrs. Uptons India Ltd. "Tree Top"
2. Messrs. Voltas Ltd. "Volfruit"
3. Messrs. Karnataka Agro "Gala"
4. Messrs. Gujarat Agro "Give"
5. Mr. Gupta also placed reliance on another affidavit affirmed on behalf of the respondent No. 12 after filing of the report by the Central Laboratory on 5th December 1988 which was filed in Court on December 7, 1988 and the deponent dealing with the report submitted by the Central Food Laboratory, Kyd Street, Calcutta pursuant to the order of this Court in September, 1988 the deponent on behalf of the company has asserted that the said Laboratory had no jurisdiction or authority to append its opinion that Appy and Frooti were allegedly "mis-branded".
6. The deponent has further stated that the said Laboratory was only required to analyse the composition of the two products and not to opine upon branding of the same under the provisions of the Food Adulteration Rules and the said Laboratory was not competent to give any opinion upon the branding or misbranding of any product and the opinion appended was extraneous and arbitrary.
7. By referring to the. report, the deponent contends that the sample of "Appy" contains 13.9% of total soluble solids and the sample of "Frooti" contains 15.0% of total soluble solids. The test reports also state that the products contain fruit

juice. Accordingly, the total soluble solids in the said samples are such more than the minimum requirement of 10% and therefore it is clear that the said products fulfil the requirements of Fruit Products Order 1955. By referring to the report relating to 'Appy', it is contended that it contains fruit juice but is "misbranded", as it contravenes Rules 37,32A and Rule 40(3) of the F.P.A. Rules. According to the de ponent, neither of the Rules are applicable to the products marketed by the respondent No. 12. Rule 32A refers to nutritional foods and provides that the food claimed to be enriched with nutrients, such as, minerals, proteins or vitamins shall give the quantities of such added nutrients on. the label.

38a. According to the deponent, this Rule does not apply to Frooti and Appy, as the respondent No. 12 does not claim the same to be 'enriched' with any of the nutrients stated therein. Similarly, Rule 40(3) of the Prevention of Food Adulteration Rules provides that any fruit and vegetable product alleged to be fortified with Vitamin 'C' shall contain not less than 40 mgm of ascorbic acid per 100 gm. of the product. The respondent No. 12 does not claim that Frooti and Appy are fortified with Vitamin 'C' and hence Rule 40(3) is also not attracted to the said products. Rule 37 provides that a label should not contain any false or misleading statements in any particular concerning the food contained in the package or concerning the quantity or the nutritive value or in relation to the place of origin of the said food. The labels of Frooti and Appy do not contain any false or misleading statements and, therefore, Rule 37 is also inapplicable to the said products.

39. At the hearing of the writ petition, Mr. Dipankar Prasad Gupta, appearing for the respondent company has drawn my attention to the provisions of Clause 13 of the Fruit Products Order, 1955, where the licensing officer or any officer authorised by him, in the said behalf, was vested with power for securing compliance with the said order, viz., Fruit Products Order.

40. In Clause 13 the following powers are given to the "Licensing Officer" or any other officer authorised by him, which are as follows :

"13. The Licensing Officer or any officer authorised by him in this be half may with a view to securing a compliance with this Order- (a) require any person to give any information in his possession with respect to the manufacture and disposal of any fruit products manufactured by him; (b) enter upon and inspect the premises of any licensee or manufacturer at any time with a view to satisfying himself that the requirements of this order are being complied with, and- (i) on giving a proper receipt, seize or detain any fruit products manufactured, marked, packed or labelled otherwise than in accordance with the provisions of this order or suspected to be

manufactured, marked, packed or labelled in contravention of the provisions of this Order; (ii) seize or detain, on giving a proper receipt, raw materials, documents, account books or other relevant evidence of which he has reason to believe that a contravention of the Order has taken place; (iii) dispose of all fruit products of raw materials, so seized or detained in such manner as he deems fit; (c) inspect any books or other documents of a licensee relating to the manufacture and disposal of fruit products; (d) collect, on payment, samples of fruit products intended or exposed for sale, or sold, or under despatch or delivery to any dealer, agent or broker for the purpose of sale, and have such samples analysed at a laboratory selected for the purpose by the licensing officer; (e) collect, from the licensee or manufacturer, free of charge, on giving a proper receipt, samples of any fruit products or any chemical, dye or any other ingredients used in the preparation of such fruit products from the premises of such licensee or manufacturer, in respect of which he has reason to believe that a contravention of the Order has taken place; (f) by an order in writing prohibit the sale or manufacture of any fruit products in respect of which he has reason to believe that a contravention of this Order has taken place, at the dealers as well as at the manufacturers end." 41. Thus it appears from the aforesaid Sub-clause of Clause 13 that the licensing officer has been vested with all powers including the power to prohibit the product in respect of which he has reason to believe that a contravention of this Order has taken place.

42. In my opinion, in view of the report submitted by the Director of Central Food Laboratory, Kyd Street, Calcutta regarding analysis report of the sample of 'Frooti' and 'Appy' submitted by the Director of the said Laboratory on October 7, 1988 and in view of the clear statements made in the affidavit affirmed by the Union of India, this Court is prima facie satisfied that the composition of the product known as 'Frooti' and 'Appy' requires further investigation by the "licensing authority" in terms of Clause 13 of the Fruit Products Control Order, 1955.

43. Accordingly, I direct that the licensing officer to arrive at a necessary decision after taking such evidence including the analysis report of the Central Food Laboratory and to arrive at the requisite finding about contents of fruit and pulp in the said "fruit drinks" as to whether the said products, viz., 'Frooti' and 'Appy' are "misbranded" and, in fact, the respondent company is cheating the consumers at large.

44. The Licensing Officer should also arrive at a finding as to whether a required percentage of fruit juice is present or not in the said concerned products within the meaning of Clause 2(k) of the Order or actually what has been declared on

the label of the pack and/or if necessary, pass order in terms of Clause 13(f) of the Fruit Products Order prohibiting the sale or manufacture of the said product, viz., 'Frooti' and 'Appy'.

45. If, according to the licensing officer, the products are "misbranded" under P.F.A. Rules, then to take such decision for punishment against the Company for adulteration under the relevant provisions of the Act and/or Order.

46. Pending final decision by the Licensing Officer, the respondent company is restrained from making any publicity of the product in the news papers, mass media, including Television, in respect of the product but the respondent company will be at liberty to produce and sell the aforesaid product, i.e., 'Frooti' and 'Appy' in the meantime.

47. The Licensing Officer is to conduct the proceeding after giving a reasonable opportunity to the writ petitioner who is appearing in person as well as the respondent No. 12 within a period of four months from the date of communication of this order and in accordance with law.

48. The writ petition is thus disposed of. There will be no order as costs.

49. Prayer for stay of operation of this judgment is considered and re fused by this Court, since this Court has not restrained the respondent No. 12 from manufacturing the concern food products.

50. If the certified copy of this judgment is applied for by the parties, the same may be made available to them expeditiously in terms of the Rules.

51. In the meantime, let plain copies of the operative part of the judgment from page 25, countersigned by the Assistant Registrar (Court) be given to the parties for communication and for compliance.Madhya Pradesh High Court Surendra And Co., Dal Bazar, Gwalior vs Rajesh Kumar Rai on 1 May, 2015 1 M.Cr.C. No. 9263/2011

HIGH COURT OF MADHYA PRADESH BENCH AT GWALIOR

SB : JUSTICE S.K. PALO

M.Cr.C. No. 9263/2011

Surendra & Company

Vs.
Rajesh Kumar Rai and others

Shri K.N. Gupta, Senior Advocate with Shri R.S. Dhakad, Advocate, for the petitioner. Ms. Sudha Shrivastava, Panel Lawyer for the respondent/State. Shri Sanjay Dwivedi, Advocate for the respondent No.3.

ORDER

(01/05/2015) This petition under Section 482 of Cr.P.C. has been filed for invoking the inherent jurisdiction of this Court to quash the criminal proceedings pending as Criminal Case No.7197/2011 before the Judicial Magistrate First Class, Gwalior registered under Section 7/15 of Prevention of Food Adulteration Act, 1954 read with Rules known as Prevention of Food Adulteration Rules, 1955.

Briefly stated the factual matrix is as follows: the complainant/ respondent No.2 is the Food Inspector serving under the respondent No.1 Deputy Director Foods and Drugs Administration, District- Gwalior. He has been authorized by Public Health and Family Welfare Department and also by Director Food and Drugs Administration and Local Health officer to observe the Prevention of Food Adulteration in Gwalior. The complainant / respondent No.2 on 13.06.2011 at about 4:30 pm came to the shop of the petitioner, which is in the Firm Future Retail Ltd., Deendayal City Mall, Phoolbag, which is run by Surendra and Company. He purchased three samples of Neutralite "Healthier than Butter" from the manager Shivanand Jha at a cost of Rs.330/-. The samples are of batch No.K-122, PKD 05/2011. He has also obtained receipt for the payment he made and given a notice of form No.6 to Shivanand Jha.

He labelled the samples and wrapped the sample by brown paper and thereafter sealed. The No.147679 was affixed on the sample. Every sample was sealed by him. During this process Smt. Shashi Mudgal and Shri Ajay Soori witnessed the said proceedings. The said sample was sent to State Level Food Examination Laboratory, Bhopal by registered post. The other two samples were kept in the office safely. After examination the said sample, the Laboratory by its report dated 21.07.2011

informed the food department that the sample sent, was "substandard" and "misbranded". Therefore, the Food Inspector lodged the complaint against the manager of the shop Shivanand Jha, firm Future Retail Limited, Deendayal Mall and the manufacturer and marketing agent "Judas Wellness Limited" Registered Office Judas Tower Satellite, Cross Road, Ahmedabad, and the petitioner vendor Surendra & Company, Dalbazar Gwalior.

The present petition has been filed by Surendra & Company on the ground that the proceedings filed by the respondent no. 1 against the petitioner and other accused persons deserves to be quashed. The Public Analyst does not have any authority or competence under the Prevention of Food Adulteration Act and the Rules made thereunder even to opine a product as 'misbranded'. No methodology is defined under Prevention of Food Adulteration Act and the Rules made thereunder for reporting a product as 'misbranded'.

The Magistrate fell in error in not considering that summoning of the accused in criminal case is a serious matter, without examining nature of allegations made in the complainant and considering the oral and documentary evidence that it is not sufficient to bring in the charge to the accused as held by M/s. Pepsi Food Vs. Special Judicial Magistrate reported in AIR 1998 SC 128.

'Misbranded' as defined in Section 2(ix) of the Act and interpreted by the Hon'ble Supreme Court reported in the case of "Bal Kishan Thakur Vs. Municipal Corporation, Delhi" reported in AIR 1979 SC 1004. It is also contended that the petitioner is not a manufacturer and not having licence to manufacture the product cannot be prosecuted for a product, which is alleged to be 'misbranded'.

Learned counsel for the petitioner has also contended that the Magistrate fell in error in not appreciating the meaning of the word "associated" in Rule 49(23) of the Prevention of Food Adulteration Rules, which provided that word "butter" shall not be associated while labeling the product. "Associated" means being connected with or in relation to as interpreted by the Hon'ble Apex Court in the case of Commissioner Madras Hindu Religious and Charitable Endowment Vs. Narayan Iyengar reported in AIR 1965 SC 1916. It is also contended that the Magistrate fell in error in not considering the allegations made in the complaint even after taken to be true in its entirety do not constitute an offence against the petitioner because the product is not "misbranded", unless it resembles another article of food in the name of which it is sold. For this contention counsel for the petitioner placed reliance on Municipal Corporation, Delhi Vs. Thouram reported in ICR 1974 Delhi.

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The petitioner is only the vendor of the product, he has displayed the said product as supplied to it by the manufacturer, packer and marketing agency without any changes to the said packaged product. Since the allegation in the complaint is with regard to the content displayed on the package and not about the product itself, it is clear that the petitioner has not committed any offence.

It is further claimed without prejudiced to the submission of the petitioner Rule 49(23) of the said Rule shows that the requirement of not associating the word 'butter' is in respect of the label and not the package.

Learned counsel for the petitioner prays that this is a fit case for invoking the inherent jurisdiction under Section 482 of Cr.P.C. and to quash the proceedings in Criminal Case No.7197/2011 pending in the court of Judicial Magistrate First Class, Gwalior.

Learned counsel for the state opposing the contentions submitted that in the label use of the term "butter" is prohibited, whereas in the label of the food product Neutralite it is mentioned that "Healthier than Butter". Which means "misbranded". She also contended that the report submitted by the Public Analyst indicates that acid value of the extracted fat is not as per standard prescribed. The petitioner is the offender is liable under Section 7(i) and 7(ii) read with Section 16(i)-A of Prevention of Food Adulteration Act, 1954. Therefore, the present petition is not maintainable.

Having heard both the parties and after going through the record, it is felt necessary to examine the provisions. In section 2(ix) of the Prevention of Food Adulteration Act:

"(ix)"misbranded" - an article of food shall be deemed to be misbranded- (a) if it is an imitation of, or is a substitute for, or resembles I a manner likely to deceive, another article of food under the name of which it is sold, and is not plainly and conspicuously labelled so as to indicate its true character; (b) if it is falsely stated to be the product of any place or country; (c) if it is sold by a name which belongs to another article of food; (d) if it is so coloured, flavoured or coated, powdered or polished that the fact that the article is damaged, is concealed or if the article is made to appear better or of greater value than it really is; (e) if false claims are made for it upon the label or otherwise; (f) if, when sold in packages which have been sealed or prepared by or at the instance of the manufacturer or producer and which bear his name and address, the contents of each package are not conspicuously and correctly stated on the outside thereof within the limits of variability prescribed under this Act; (g) if the package containing it, or the label on the package bears any statement, design or device regarding the ingredients or the substances contained

therein, which is false or misleading in any material particular; or if the package is otherwise deceptive with respect to its contents; (h) if the package containing it or the label on the package bears the name of a fictitious individual or company as the manufacturer or producer of the article; (i) if it purports to be, or is represented as being, for special dietary uses, unless its label bears such information as may be prescribed concerning its vitamin, mineral, or other dietary properties in order sufficiently to inform its purchaser as to its value for such uses; (j) if it contains any artificial flavouring, artificial colouring or chemical preservative, without a declaratory label stating that fact, or in contravention of the requirements of this Act or rules made thereunder; (k) if it is not labelled in accordance with the requirements of this Act or rules made thereunder;" As per Rule 49(23) of the Prevention of Food Adulteration Act, 1955, it is provided that:

"[(23) The fat spread shall not be sold in loose form. It shall be sold in sealed packages weighing not more than 500 gms. The word "butter" shall not be associated while labelling the product. The sealed package shall be sold or offered for sale only under AGMARK certification mark bearing the label declaration as provided under rule 42 besides other labelling requirements under these rules.]" Food packet purchased by the Food Inspector contains the words "Neutralite" (Healthier then Butter). As per the complaint of the Food Inspector using the word 'butter' in the labeling of the product is prohibited. Therefore, it violation of Section 2(ix)(x) of the Food Adulteration Act and Rule 49(23) of Food Adulteration Rules. Therefore, the word butter used in the label constitute "misbranding".

It would be appropriate to examine the Public Analyst report dated 21.07.2011 in which the Analyst has stated that the food product examined does not confirm the standard prescribed as per the provisions laid down under Prevention of Food Adulteration Act, 1955 in respect of the above test.

The comparative chart is given below to ascertain the correct position of the analyst report:

S.No. Quality Name of Result Prescribed Characteristics Method of Standards as test used per Rules

1. Fat Q.G.H.S. Method 69.5% Not more than 80% not less than 40%

2.	Moisture	-	29.0%	Not more than 56% not less than 16%
3.	Melting point of extracted fat (capillary slip method)	-	36.1° C	Not more than 37° C
4.	Acid Value of extracted fat	-	0.89%	Not more than 0.5%
5.	Bandowin test of extracted fat	-	Positive	-
6.	Added colour	-	Absent	-
7.	Test for salt	-	Positive	-
8.	Visible extraneous matter	-	Nil	-

Though the analyst has not mentioned the prescribed standard as per item A.31 of appendix-B in his report but the acid value of extracted fat in the report has been found to be 0.89, whereas it should not be more than 0.5 as required in item A.31 of Appendix-B of the Prevention of Food Adulteration Act, 1955.

In this regard, the petitioner has not offered any satisfactory explanation.

Learned counsel for the petitioner placed reliance in the case of M/s F.C. Food (Supra). The Hon'ble Supreme Court at para 26 and 28 has analysed the powers of the High Court. In the words of the Hon'ble Apex Court :-

"Para No.26: Nomenclature under which peition is filed is not quite relevant and that does not debar the Coiurt from exercising its jurisdiction which otherwise it possesses unless there is special procedure prescribed which procedure is mandatory. If in a case like the present one the Court finds that the appellants could not invoke its jurisdiction under Article 226, the Court can certainly treat the petition one under Article 227 or Secton 482 of the Code. It may not, however, be lost sight of that provisions exist in the Code of revision and appeal but sometime for immediate relief Section 482 of the Code or Article 227 may have to be resorted to for correcting some grave errors that might be committed by the subordinate Courts. The present petition though filed in the High Court as one under Articles 226 and 227 could well be treated under Article 227 of the Constitution.

Page No.28: Summoning of an accused in a criminal case is a serious matter. Criminal law cannot be set into motion as a matter of course. It is not that the complainant has to bring only two witnesses to support his allegations in the complaint to have the criminal law set into motion. The order of the Magistrate summoning the accused must reflect that he has applied his mind to the facts of the case and the law applicable thereto. He has to examine the nature of allegations made in the complaint and the evidence both oral and documentary in support thereof and would that be sufficient for the complainant to succeed in bringing charge home to the accused. It is not that the Magistrate is a silent spectator at the time of recording the preliminary evidence before summoning of the accused. Magistrate has to carefully scrutinise the evidence brought on record and may even himself put questions to the complainant and his witnesses to elicit answers to find out the truthfulness of the allegations or otherwise and then examine if any offence is prima facie committed by all or any of the accused."

However, the question remained to be examined in the present case that whether the food product examined, was sub-standard and use of word "butter", mentioned in the label of the food product can be permissible. In the case of M/s Pepsi Food, the allegation was that the said beverage under brand "Lehar Pepsi" was adulterated but the petitioner was not the manufactured, therefore, the same case law is not attracted in the present case.

Learned counsel for the petitioner has tried to fortify his view by placing reliance in the case of Balkishan Thapar 1977 (Supra) in which it has been held that :

"Prevention of Food Adulteration Act (37 of 1954), Section 2(ix) (a) and (g) - Preparation labelled "as sweet as Saccharin but not as bitter as Saccharin"

- Preparation could not be held to have been misbranded as Saccharin or preparation of the type of Saccharin within the meaning of Section 2(ix) (a) and

(g) - 1975 F.A.J. 220 (Delhi) Reversed."

The Hon'ble Apex Court in this case dealt with the question of "misbranding" related to Saccharin. In its label, it is mentioned that "as sweet as Saccharin but not as bitter as Saccharin", giving an impression to the purchaser that preparation sold was sweet as Saccharin but not as bitter as Saccharin. This was indicated merely to lay emphasis on the sweetness of the preparation, therefore, the hon'ble Apex Court has held it not within ambit of "misbranding".

In the present context, despite the fact that term will not be associated while labeling product, as has been stated above, word "butter" has been used to promote the sale by labeling it as "healthier than butter". Thus, the above citation is of no avail in the present case.

Learned counsel for the petitioner relied in another case of Pooranlal Vs. State of M.P. reported in 2007(1) MPLJ 1990, in which it is held that the question raised was of sold packet of iodize salt which was purchased from the licenced manufacturer in packets. Therefore, the petitioner could not be held responsible for the sale of iodize salt. Inherent powers of the Court was invoked because the party availed the right of revision before the Court of Sessions. The same party again cannot avail as second revision as it is barred. However, it does not bar to invoke its inherent power to remove the abuse of process of Court.

Sub-section 2 of Section 19 of Prevention of Food Adulteration Act, provides that :

"[(2) A vendor shall not be deemed to have committed an offence pertaining to the sale of any adulterated or misbranded article of food if he proves- (a) that he purchased the article of food- (i) in a case where a license is prescribed for the sale thereof, from duly licensed manufacturer, distributor or dealer, (ii) in any other case, from any manufacturer, distributor or dealer, with a written warranty in the prescribed from; and (b) that the article of food while in his possession was properly stored and that he sold it in the same state as he purchased it.]" At this juncture, when the food material was purchased from the petitioner's shop Surendra and Company, the petitioner has to prove that he has purchased the food packet from duly licenced manufacturer, distributor or dealer. The petitioner as vendor can avail the benefit of sub-section 2 of Section 19 of the said Act, only when he proves the same.

Sub-section 1 of Section 19 of Prevention of Food Adulteration Act provides that:

"it shall be no defence in a prosecution for an offence pertaining to the sale of any adulterated or misbranded article of food to allege merely that the vendor was ignorant of the nature, substance or quality of the food sold by him or that the purchaser having purchased any article for analysis was not prejudiced by the sale" In the light of the above, the vendor/petitioner is to prove that he purchased / questioned the article of food from the licenced manufacturer.

At this stage, it would not be appropriate to exonerate the petitioner/vendor merely that he was ignorant of the nature of substance of the quality of food article.

Learned counsel for the petitioner placed reliance on Parakh Foods Limited Vs. State of Andhra Pradesh and another (2008) 4 SCC 584, in which the Hon'ble Apex Court has exonerated the appellant in the case of "misbranding" of Soyabean oil. In the label photographs of vegetables which are not soyabean is depicted. Holding that the appellant has used pictures of vegetables on the label of the food product, which is refined soyabean oil for preparation of vegetables depicted thereon. In other words, the label does not claim that the soyabean oil has been extracted or prepared from the vegetables. Therefore, the prohibit expression which are exaggeration of quality of the product does not attract.

The above case is totally in a different footing and therefore, the same cannot be applied in the present context.

Learned counsel for the petitioner has also preferred to cite the case of Academy of Nutrition Improvement and others Vs. Union of India reported in (2011) 8 SCC 274.

In this case, the Hon'ble Supreme Court has considered vires of amendment made in the Food Adulteration Rules 1955, wherein it was made compulsory iodisation of common salt in human consumption. This case law is also of no avail in the present context as it is in a different footing.

Similarly, Dr. Manu Seth Vs. Food Inspector reported in MANU/PH/1544/2008 decided by the High Court of Punjab and Haryana; Gopi Nath and Sons Vs. State of Himachal Pradesh and another reported in 1981 CriLJ 175 decided by the High Court of Himachal Pradesh, Selvakumar Vs. State, Represented by the Food Inspector Madurai Corporation reported in 2010 Indlaw MAD 1788 decided by the High Court of Madras are in different context and are in different footing, therefore, does not attract in the present case.

With the above discussions, it is evident that direct traces of the allegations contained in the complainant against the petitioner, does not warrant quashing the charges against the petitioner/vendor.

Accordingly, this petition under Section 482 of Cr.P.C. filed by the petitioner, is hereby dismissed.

(S.K. Palo) Judge Rashid*Himachal Pradesh High Court Nutrine Confectionery Co. Ltd. vs State Of Himachal Pradesh And Anr. on 10 November, 1978 Equivalent citations: 1979CRILJ219 ORDER

C.R. Thakur, J.

1. This petition under Section 482 of the Code of Criminal Procedure have been filed by the Nutrine Confectionery Co. Ltd. (hereinafter called the Company) for quashing the prosecution of the petitioner under Section 16 (1)(a) read with Section 7 of the Prevention of Food Adulteration Act (shortly called the Act) under the order, dated 13-12-1977, whereby the learned Chief Judicial Magistrate, Kulu, on acquittal of Rajesh Kumar ordered the prosecution of Pad-manabhan, the proprietor of M/s. Voltas Ltd., respondent No. 2, and on an application of Padmanabhan, the learned Magistrate further ordered the prosecution of Nutrine Confectionery Co. Ltd., i.e. the present petitioner in exercise of the powers under the provisions of Sec tion 190 (c) Cr.P.C. read with Section 20-A of the Act.

2. On 30th September, 1975, the Food Inspector, Kulu, purchased one packet containing one kg. of 'dairy toffee' out of a .total number of 29 packets found in possession of Rajesh Kumar for pur-poses of analysis and sample. The pac-ket was opened and after dividing the same in three equal parts as provided under the rules, one packet was sent to the Public Analyst, who, vide his report Exhibit PD, opined that the toffees were adulterated as they did not conform to the standard laid down for milk toffee According to the Public Analyst the sample contained 1.5% protein, as against the minimum prescribed 3.0% for milk toffee.

3. Therefore, on a complaint made by the Food Inspector, Rajesh Kumar was charged under Section 16 (1)(a) read with Section 7 of the Act.

4. In his examination under Section 313 Cr.P.C. the accused stated that he had purchased the toffees from M/s. Voltas Ltd., 7/1, Asaf Ali Road, Post Box 85, New Delhi. He also produced the bill and the warranty issued by M/s. Voltas Ltd. in favour of the accused, which is Exhibit DA, The learned Magistrate im-pleaded M/s. Voltas Ltd. as the accused.

5. Padmanabhan of M/s. Voltas Ltd. on being summoned by the court appeared and he moved an application that the report of the Public Analyst was defective, inasmuch as he had applied standard of milk toffee to the sample. According to

him, the Food Inspector had purchased, not milk toffee, but plain toffee, and that the Public Analyst should not have applied standard of milk toffee. He had further stated that the toffees bore the label 'dairy toffee' on the packet which had been distributed by them to Rajesh Kumar. By this appellation of the dairy toffee it did not mean that they were milk toffees, rather they were milk and butter toffees. The learned Magistrate, therefore, after having examined the Public Analyst a second time found that adulteration in toffees could not be used as base for convicting the accused and, he therefore, acquitted the accused.

6. The Food Inspector during the course of the trial had moved an application that accused, Padmanabhan is liable to be prosecuted for the offence of misbranding because he had contravened the provisions of Rule 37 of the Prevention of Food Adulteration Rules, as the label on the packages of toffees contained misleading statement, i.e., words 'dairy toffees' inscribed on them and the consumer could be very easily misled that the toffees contained in the packages were either milk toffees or butter toffees because the word 'dairy' has a reference to milk or milk products. He, therefore, while acquitting Rajesh Kumar, ordered the prosecution of Padmanabhan, who also made an application for impleading the present petitioner before this Court. The learned Magistrate by his order, dated 3-2-1978 ordered that he would take cognizance under Section 190 (c) Cr.P.C. read with Section 20-A of the Act against the petitioner.

7. It is these orders of the Magistrate which are sought to be quashed by this petition under Section 482 Cr.P.C.

8. The learned Counsel for the petitioner submitted a note and he tried to stress that no offence of misbranding within the intendment of the Act and the Rules had been disclosed. In fact, according to him, the toffees in question were sold under the label of 'dairy toffee" which connote their ingredients, viz. butter and milk, and, therefore, there was nothing misleading. He has referred me to the provisions of Section 2 (ix)(a) and 2 (ix)(g), and Rule 37 of the Rules, as also to the dictionary meaning of the word 'dairy'-

9. Rule 37 of the Prevention of Food Adulteration Rules 1965 reads as under:

Labels not to contain false or misleading statements. A label shall not contain any statement, claim, design, fancy name or abbreviation which is false or misleading in any particular concerning the food contained in the package, or concerning the quantity or the nutritive value or in relation to the place of origin of the said food."

Sections 2 (ix)(a) and 2 (ix)(g) of the Act read as under. (ix) 'misbranded' an article of food shall be deemed to be misbranded (a) if it is an imitation of, or is a substitute for, or resembles in a manner likely to deceive another article of food under the name of which it is sold, and is not plainly and conspicuously labelled so as to indicate its true character; (g) if the package containing it, or the label on the package bears any statement, design or device regarding the ingredients or the substances contained therein, which is false or misleading in any material particular; or if the package is otherwise deceptive with respect to its contents; Now it is an admitted case that the package which was purchased by the Food Inspector from Rajesh Kumar bore the label of 'dairy toffee'. The meaning of the word 'dairy' as given in Webster's Third New International Dictionary is "the department of farming or of a farm that is concerned with the production of milk, butter, and cheese". The same meaning is given to the word 'dairy' in the Oxford Dictionary. Therefore, from the dictionary meaning it would be quite apparent that the 'dairy 'toffee' would mean nothing else except the toffee made of milk and butter. Therefore, it is wrong to say that they were milk toffees as the connotation 'dairy' would show that it means both butter and milk which are the ingredients for the preparation of dairy toffee. The Food Inspector has stated in cross- examination that neither on the packet nor on the wrapper of the toffee, the sample of which he had taken and had sent to the Public Analyst for analysis, there was any mention of the word or words 'milk toffee1. The sample which was taken and sent by him was that of dairy toffee. Therefore, this clinches the matter that the sale was not of the milk toffee rather the sale was of dairy toffee. However, according to the complainant he did not find any distinction between the two types of toffees. Once it is found that there was a clear indication that it was dairy toffee then it could not be purchased and styled as milk toffee. Therefore, there was definitely nothing misleading. The connotation of dairy toffee is, therefore, quite clear that it is made of milk and butter. In the rules, admittedly, there is no mention of 'dairy toffee' and hence the standard which is fixed for milk toffee cannot be applied to 'dairy toffee', which is made up of two constituents, Le. milk and butter. This is also admitted by the Food Inspector in his cross-examination that there is no standard laid down for the dairy toffee.

10. From Section 2 (ix)(a) and (g) also it would be clear that the misbranding for which the petitioner has been charged must be an imitation of or a substitute for, or resembles in a manner likely to deceive, another article of food under the name of which it is sold. This Sub-clause (a) of Clause (ix) of Section 2 is, therefore, not attracted because there was nothing in the appellation or label, which in any way deceived the purchaser. Similarly Sub-clause (g) would also not be applicable. The label on the package did not bear any statement, design or device regarding the ingredients of which these dairy toffees were made. 'Dairy

toffee' could not mean anything except the product of dairy, i.e. milk and butter. Therefore, in these circumstances it cannot be said that there was any offence of misbranding committed by the petitioner.

11. According to the learned Counsel Sections 20 and 20-A prescribed the only mode in which the court can take cognizance of an offence under the Act. It Is an admitted fact that the prosecution against the petitioner is not under Section 20 of the Act. It is only Section 20-A under which the Magistrate could exercise the power. In order to see how and when the power can be exercised under this section it would be proper to reproduce the section itself and the same is as under.

Where at any time during the trial of any offence under this Act alleged to have been committed by any person, not being the manufacturer, distributor or dealer of any article of food, the Court is satisfied, on the evidence adduced before it, that such manufacturer, distributor, or dealer is also concerned with that offence, then, the court may, notwithstanding anything contained in Sub-section (3) of Section 319 of the Code of Criminal Procedure, 1973, or in Section 20 proceed against him as though a prosecution had been instituted against him under Section 20.

A perusal of this section would, therefore, show that the court trying an offence under the Act alleged to have been committed by any person (here Rajesh Kumar) can proceed against manufacturer, distributor or dealer if the court is satisfied on the evidence adduced before it that such manufacturer, distributor or dealer is concerned with the offence. But this power has got to be exercised or invoked only during the trial of the person, who is alleged to have committed the offence under the Act and not thereafter. In the instant case what has happened is that the learned Magistrate acquitted Rajesh Kumar and then ordered the prosecution of Padmanabhan, the Manager of the Voltas Ltd., and it was on his application that the present petitioner was also im-pleaded. Therefore, the learned Magistrate has acted in contravention of the mandatory provisions of Section 20-A, which clearly say that the power can be exercised only during the trial and not thereafter.

12. The learned Magistrate has wrongly invoked the provisions of Section 190 (c) Cr.P.C. which fall under Chapter XIV and provides for conditions requisite for initiation of proceedings. Section 20-A of the Act as a matter of fact is identical to Section 319 of the Code of Criminal Procedure, 1973, which provides for power to proceed against other persons appearing to be guilty of offence which falls under Chapter XXIV of the Code. The power is given under S, 20-A of the Act for impleading the other persons appearing to be guilty of offence. Therefore, if the power is given under the Act and the mode for exercise of that power is

prescribed then the same shall be exercised in that particular manner, and in no other manner as is held in Nazir Ahmad v. King Emperor AIR 1936 PC 253 (1). The learned Magistrate, therefore, has wrongly acted in exercise of the powers under Section 190 (c), Cr, P. C.

13. The cognizance had to be taken under Section 20-A which provides that the other persons who appear to be guilty must be impleaded during the trial. In this behalf I may also refer to a case Ram Kumar v. Municipal Corporation of Delhi 1971 Cri LJ 716 (Delhi) where in a similar case the court held that order for prosecuting manufacturer or distributor from whom goods are alleged to have been purchased on warranty can be passed only before discharge or acquittal of vendor charged under Section 7/16.

14. The Supreme Court in M/s. Bhag-wan Das Jagdish Chander v. Delhi Administration also held that Section 20-A contemplates action which can be taken during the course of the trial. A separate trial would require a "written consent of the Central Government or the State Government or a local authority or of a person authorised in this behalf by general or special order by the Central Government or the State Government or a local authority", unless it is a complaint by a purchaser, other than a Food Inspector, who could rely upon Section 12 of the Act. But, an addition of an accused under Section 20-A constitutes an expressly laid down exception to the requirement of a sanction under Section 20 (1).

15. In the instant case the trial of the petitioner and M/s. Voltas Ltd. started after 13-12-1977, when Rajesh Kumar was acquitted. Therefore, this order being in violation of the mandatory provisions of Section 20-A is not sustainable. The result, therefore, is that in the first instance there is no offence of mis-branding disclosed by the complainant, and, secondly, the manufacturer and the distributor have been prosecuted after the acquittal of the vendor who had purchased the dairy toffee from M/s. Voltas Ltd., who were the distributors and who in their turn had purchased the same from the present petitioner. The subsequent proceedings against M/s. Voltas Ltd. as also the petitioner are therefore without jurisdiction.

16. The result, therefore, is that the petitioner succeeds and the orders are hereby quashed.[Cites 7, Cited by 0] Madras High Court M/S.Carenow Medical Pvt. Ltd vs State Represented By Its on 11 September, 2023 Author: N.Anand Venkatesh Bench: N.Anand Venkatesh Crl.O.P.No.25479 of 2022 IN THE HIGH COURT OF JUDICATURE AT MADRAS DATED : 11.09.2023 CORAM : THE HON'BLE MR.JUSTICE N.ANAND VENKATESH Crl.O.P.No.25479 of 2022 and Crl.M.P.No.15819 of 2022

1. M/s.Carenow Medical Pvt. Ltd., No.3/272-5, Neelambur Road, Muthugoundenpudur, Coimbatore, TN-641406, Represented by its Director cum person responsible, Rajkumar Thangaraj 2. Rajkumar Thangaraj 3. R.Kathiresan 4. V.Rajesh .. Petitioners Versus State Represented by its The Drugs Inspector, Suramangalam Range, O/o. The Assistant Director of Drugs Control, Salem West Zone, No-130/9 & 130/10, Pannagadu, Meyanoor Main Road, Salem - 04. .. Respondent Prayer : Criminal Original Petition filed under Section 482 of the Code of Criminal Procedure, to call for the records relating to the C.C.No.561 of

2021 on the file of the learned Judicial Magistrate No.II, Salem, quash the same by allowing this Criminal Original Petition.

For Petitioners : Mr.M.Guruprasad

For Respondent : Mr.A.Gopinath,
Government Advocate (Crl. Side)

ORDER

This petition has been filed to quash the proceedings pending in C.C.No.561 of 2021 on the file of the learned Judicial Magistrate No.II, Salem.

2. Heard Mr.M.Guruprasad, learned Counsel for the petitioners and Mr.A.Gopinath, learned Government Advocate (Crl. Side) for the respondent.

3. The respondent has filed a complaint against the petitioner for contravention under Section 18(a)(i) read with Section 17(b) and Section 18(c) of the Drugs and Cosmetics Act, 1940 read along with Rule 74 read with condition No.3 of Form 25 of the Drugs and Cosmetic Rules, 1945 punishable under Section 27D of the Act.

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4. The case of the prosecution is that a drug sample was lifted from the premises under Form 17 on 03.06.2020 and it was sent for analysis on the same day. The report of the sample, dated 04.08.2020 was received and it was reported that it is a standard quality, but, has been misbranded since the label should have stated the active ingredient in the drug and the same is missing.

5. In view of the above, show-cause notice came to be issued by the respondent. The petitioner had also given a reply and the petitioner had provided the necessary details also. Based the same, an interim report was submitted by the Drug Inspector, dated 13.10.2020. Thereafter, yet another show-cause notice, dated 28.10.2020 along with Form 13 was sent to the M/s.Rainbow Healthcare System. A reply was also received from the said Company and it was disclosed that the drug was purchased by them from the first petitioner who is the manufacturer of the drug. Once again, a show-

cause notice, dated 18.11.2020 along with Form 13 was issued to the petitioners and the petitioners gave a reply, dated 09.12.2020 along with all the relevant documents.

https://www.mhc.tn.gov.in/judis

6. Pursuant to the above, the complaint came to be filed before the Court below against the petitioners. The main allegations that have been made against the petitioners is that they had misbranded the product and they failed to properly provide the active ingredient in the sample. Thereby, it is alleged that the petitioners have committed the offence punishable under the Drugs and Cosmetics Act.

7. There is no dispute with regard to the fact that the first petitioner is the manufacturer of the drug. They also possess a license for manufacturing the drug. The report of the Government Analyst shows that the sample that was lifted was of standard quality and the only issue that was put against the petitioners was that it was misbranded and the content of the active ingredient is not expressed either in terms of percentage by weight or volume or in terms of unit per gram or millimeter.

8. A similar complaint came to be filed against the petitioners even on an earlier occasion on the very same grounds and the same became a subject matter of challenge before this Court in Crl.O.P.Nos.11696 and 13627 of https://www.mhc.tn.gov.in/judis 2022. This Court considered the very same issue in detail and it was held as follows:-

" 7. Now, the only ground which has to be seen whether the prosecution has proved the alleged misbranding. The licence was issued to manufacture for sale of Theruptor Hand Rub. In the composition the petitioner has added Each 100g of solution contains Chlorhexidine Gluconate Solution I.P 2.5% v/v equivalent to Chlohexidine 0.5% w/v, Denatured Ethyl Alcohol 70% v/v, Glycerine, skin emollients and excipients. Mentioning 100 gram said to be the violation. As per the lab report, there is no difference in composition. The composition in fact, in tune with the licence conditions. That was the Analyst has given report stating that drug was a standard quality. There was neither adulteration nor any extra composition found out. The only difference in the label wast the word ?each 100 gram? appeared in the label. According to the prosecution, it is ?Misbranded?. 8. Sub-Clause (c) of Section 17 of the Drugs and Cosmetics Act, 1940, reads as follows: 17. Misbranded drugs: a drug shall be deemed to be misbranded,? (a). ... ... (b) ... ... (c) if its label or container or anything accompanying the drug bears any statement, design or device which makes any false claim for the drug or which is false or misleading in any particular. https://www.mhc.tn.gov.in/judis

9. To hold it is misbranded the statement must have been false or misleading any particular. Admittedly, with regard to the composition there is no dispute. The licence has also give only to manufacture of Hand Rub and the weight and volume in the samples also in the same quality which has not been disputed. It is also found in the Analyst Report. It is not the case of the prosecution that the weight and volume noted by the Analyst is not in terms of the gram. Even in the counter, it is admitted that after the show cause notice the word ?100g? was also removed. When the composition is not against even the 100 gram as mentioned by the petitioner in the old label, it cannot be presumed that statement was false and misleading any particular to attract misbranding. It is only a minor violation which has not been considered by the prosecution.

10. It is also to be noted that in the guidelines for taking action and samples of Drugs declared spurious or not of standard quality, the guidelines framed u/s.33 (P) of the Act category (C) of the guidelines narrates the following:

Category (C) (Minor defects): Drugs manufactured by the licenced manufacturers found not of standard quality because of defects arising out of minor variations in quality. Such defects may arise because of inadequate pre-formulation development studies, lack of in process controls exercised by the manufacturer or unsuitable conditions under which drugs are stored or transported. https://www.mhc.tn.gov.in/judis Examples of some such the defects are as under: (i) Broken or chipped tablets (ii) Presence of spot / discolouration / uneven coating.

(iii)Cracking of emulsions. (iv) Clear liquid preparations showing sedimentation. (v) Change in colour of the formulation. (vi) Slight variation in net content. (vii)Formulations failing in weight variation. (viii)Formulations failing to respond to the colour test. (ix) Isolated cases of presences of foreign matter. (x) Labelling error including nomenclature mistake, Rx, Nrx, Red Line, Schedule H. Caution, Colour etc. 11. On a perusal of the above guidelines further, it makes it very clear that the State Drug Control Organisation for uniform implementation of the provision of the Drugs and Cosmetics Act and Rules made thereunder. While implementing new provisions, the State Regulatory Authorities should ensure that the law is implemented in a comprehensive way. In order to effectively use the said instrument of law, it is necessary to have Standard Operative Procedures set in each State to examine and process various violations of the provisions of the Act. The State Drug Central Organizations should have internal mechanism of checks and balances to ensure that law abiding https://www.mhc.tn.gov.in/judis manufacturers and sellers of drugs are not harassed or put to a disadvantageous position. Care should be taken that while violations with criminal intent or gross negligence leading to serious defects are dealt with heavy hand, the violations involving minor variations in quality by licenced manufacturers are resolved through administrative measures. At any event this Court after seeing the very small variation in the label is of the view that it would not amount to misbranding. Accordingly, the prosecution against the petitioner in STC No.01 of 2022 on the file of the Judicial Magistrate No.II, Walajah and STC No.20 of 2022 on the file of the Judicial Magistrate No.1, Vellore, stand quashed."

9. The above findings rendered by this Court squarely apply to the facts of the present case also. It is brought to the notice of this Court that the above order has become final and no appeal has been filed. Therefore, the reasons that have been given in the above order will equally apply to this case also and it will enure in favour of the petitioners.

10. In the light of the above discussion, the proceedings in C.C.No.561 of 2021 on the file of the learned Judicial Magistrate No.II, Salem is hereby quashed. This Criminal Original Petition stands allowed.

Consequently, connected miscellaneous petition is closed.

https://www.mhc.tn.gov.in/judis 1109.2023 Index : yes/no Speaking order/Non-speaking order Neutral Citation : yes/no grs To

1. The Judicial Magistrate No.II, Salem.

2. The Drugs Inspector, Suramangalam Range, O/o. The Assistant Director of Drugs Control, Salem West Zone, No-130/9 & 130/10, Pannagadu, Meyanoor Main Road, Salem - 04.

3. The Public Prosecutor, High Court of Madras.

https://www.mhc.tn.gov.in/judis N.ANAND VENKATESH, J.

grs 11.09.2023 https://www.mhc.tn.gov.in/judisG. V. Prakash vs The Food Inspector on 25 April, 2017 Author: M.V.Muralidaran Bench: M.V.Muralidaran 1

IN THE HIGH COURT OF JUDICATURE AT MADRAS

Dated: 25.04.2017

CORAM

THE HONOURABLE MR.JUSTICE M.V.MURALIDARAN

CRL.O.P.No.23237 of 2011
and
M.P.No.1 of 2011

1. G. V. Prakash

2. J.Gnandurai

3. A.K.Muthusamy

4. S.K.M. Animal Feeds and Foods(India)
Chavadipalayam Pudur Road,
Nanjaiuthukuli,
Modakurichi,
Erode District. .. Petitioners

Vs.

The Food Inspector,

Vaniputhur Town Panchayat,
Government Primary Health Centre,
T.N.Palayam - 638 506
Erode District. .. Respondent

Prayer: Criminal Original Petition was filed under Section 482 of Cr.P.C to call for the records relating to order passed in C.C.No.280 of 2009 on the file of Judicial Magistrate No.I, Gobichettipalayam and quash the same.

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For Petitioners : Mr.A.Sundaravadhanam

For Respondent : Mr.B.Ramesh Babu
Government Advocate (Crl.Side)

ORDER

This criminal original petition is preferred by the Petitioners/Accused A1 to A4 against the complaint filed by the complainant which is pending in C.C.No.280 of 2009 on the file of the learned Judicial Magistrate No.I, Gobichettipalayam.

2.Brief case of the petitioners/accused A1 to A4:

The prosecution case is that the respondent, who is the Food Inspector of Government Primary Health Centre, T.N.Palayam, inspected the groceries shop of the 1 st petitioner/accused on 27.12.2007 and found that Refined Rice Bran Oil in 500 Ml. sachets sealed and packed in the brand name of Porna Refined Rice Bran Oil and on suspicion, he taken the sample as required under the said Act and Rules, in presence of independent witness and after following the mandatory procedure, he sent one sample to the Public Analyst at King Institute, Chennai, on 27.12.2007 and other samples to the concerned authorities as contemplated under the Act. Thereafter, the public analyst sent his report dated 18.1.2008, stating that his opinion that http://www.judis.nic.in the sample is found to be misbranded since it is not labeled in accordance with the requirements of Rule 37 and 39 of the Rules, and sent the same to the Local Health Authority on 21.1.2008, subsequently the

respondent/complainant sent notice under section 14(A) and 17(2) of the Act, seeking particulars of the persons in- charge of the affairs of the company to the 3rd and 4th petitioners/accused on 30.1.2008, for which they have sent the reply on 5.2.2008, and the same was received by the complainant on 7.2.2008, and the notice also given to the 2nd petitioner on 30.1.2008, and obtained report on the same date. Respondent have applied for sanction from the Public Health and Preventive Medicine only on 12.6.2009, and after obtaining the sanction, the complaint has been filed on 16.9.2009, before the learned Judicial Magistrate, Gobichettipalayam, and the learned Judicial Magistrate also taken cognizance of the above offence, in C.C.No.280 of 2009 and issued summons to all the petitioners/accused for the offences under section 7(ii) and 16(1)(a)(i) r/w sec. 2(ix)(k) and rule 37 and 39 and /or any suitable sections Prevention of Food Adulteration Act and Rules 1955. Aggrieved over the same the petitioner/accused preferred this quash petition.

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3.Heard the arguments on either side and perused the entire materials available on record.

4.The learned counsel for the petitioners /accused A1 to A4 submits that the main charge is the Rice Bran Oil Manufactured and sold by the petitioners is misbranded, since it is not labeled in accordance with the requirements of section 2(ix) (g) of the Act, and Rule 37 of the Rules, and section 2(ix(k) of the Act and rule 39 of the rules, hence they are all punishable under section 7(ii) and 16(1) (a)(i) r/w section 2(ix) (g) and (k) and section 2(g) and (k) of the Act.

5.The learned counsel for the petitioners /accused A1 to A4 submits that the complaint does not disclose any ingredients for contravention or violation under section 7(ii) and 16(1) (a) (i) r/w section 2(ix) (g) and (k) of the Act, the respondent/complainant /Food Inspector simply reproduced the opinion of the public analyst stating that the sample is found to be misbranded since it is not in accordance with rules 37 and 39 of the rules, without disclosing in what manner, the sample is said to have misbranded, and no prima facie material mentioned out against the petitioners for the allegation that the sample is misbranded under section 2(ix)(g) and (k) of the act and http://www.judis.nic.in rule 37 and 39 of the rules. In absence of any statement or material in the complaint to show that in what the eye of law to attract the penal provision of the act and rules. There must be a specific averment in the complaint stating how and what manner the customers being mislead on account of misbranding, in order to attract the provision of rule 37 or what are all the words mentioned in the label which implying recommendation by Medical Profession. In absence of as such, a mere reading of the complaint, are all

not making out a prima facie case to show that the sample is misbranded. In the above circumstances, allowing any proceedings against the petitioners is only amounts to an abuse of process of law.

6.The learned counsel for the petitioners /accused A1 to A4 submits that even as per the report of the public analyst a printing of picture 3 Heart in the pack penal of the label and the statement printed namely Rice Bran Oil increases HDL (Good cholesterol) LDL (Bad cholesterol) and triglycerides which will violates section 2(ix)(g) of the act and rule 37 of the rules. To violate the provisions of section 2(ix) and (g) of the Act, package should contain the statement or design regarding the ingredients or substance contain therein which is false or misleading or any particular or the package is otherwise http://www.judis.nic.in deceptive with respect to it is contents under section 2(ix)(g) of the act, and it must contain any statement which is false or misleading or quantity or nutritive value or in relation to place of origin of the said food, in order to violate the rule 37 of the rules. But the statement of the public analyst does not disclose in what manner the above statement is misleading or deceive or deceptive in order to violate the above provision. The public analyst should necessarily mention what manner the statement deceive the general public and also in order to substantiate his claim he should necessarily place material in order to prove statement is misleading, but by mere reproducing of the rules he come to a conclusion it is misbranded, which is not at all maintainable in the eye of law. The report is prima facie does not disclose any offence under section 2(ix) (g) or rule 37 of the rules.

7.The learned counsel for the petitioners /accused A1 to A4 submits that the public analyst statement regarding violation of rule 39 of the rules, the statement reads as it contain squalene which nourishes skin vitamin-E (tocorpherol) help in maintaining the balance of nervous system and has tucoterinol which has antithrombotic and anti-cancer properties, which according to the Public Analyst is violative of rule 39 of the rules, rule 39 of the rules says that the label http://www.judis.nic.in not to use words imply recommendation by Medical Profession of the rule reads as follows:

“Rule 39 Labels not to use words implying recommendations by medical profession – There shall not appear in the label of any package containing food for sale the words “recommended by the medical profession” or any word which imply or suggest that the food is recommended, prescribed, or approved by medical practitioners”

8.A casual reading of the statement contain in the label does not contain a word that recommendation by a Medical profession or any word imply that the food is recommended, prescribed or approved by Medical Practitioner or approval for

Medical purpose in order to violation of rule 39 of the rules. The statement contain in the label is only the statement according the ingredients of the rice bran oil, and at any rate it cannot be treated as a recommendation of other medical profession. Even in the statement the public analyst does not mentioned how it is attract the provision of rule 39 of the rules, hence the statement of the public analyst prima facie does not disclose any offence against the petitioners.

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9.The learned counsel for the petitioners /accused A1 to A4 submits that there is a long delay in initiating the proceedings against the petitioners/accused which is also fatal to the prosecution, even though the analyst report was received on 18.1.2008 the complaint has been filed only on 16.9.2009, after long delay of one year and 8 months it affects the rights of the petitioners/accused to sent the sample to the Director of Central Food Laboratory under rule 13(2)(b) of the rules, apart from that the long delay in sending the report under rule 13(2) of the rules is also affect the rights of the petitioners/accused. The petitioners/accused is ISA ISO 9001-2000 Certified Company and maintaining a good reputation, and never intended to violate the provisions of Food Adulteration Act, and they are strictly following the norms prescribed under the Act. The long and unexplained delay in launching the prosecution against the respondent is fatal to the prosecution. The complaint is filed in trial abuse of process of law hence it is liable to be quashed.

10.The learned counsel for the petitioners /accused A1 to A4 submits that the 1st and 2nd petitioners/accused is retail and wholesale vendors of Rice Bran Oil and personally engaged the day to day http://www.judis.nic.in business. Hence, they have not able to appear before the court regularly. Likewise, 3rd petitioner/accused also is incharge of the business and the 4th petitioner company managing the daily affairs. Hence he also could not appear before the court regularly.

11.The learned counsel for the petitioners/accused cited the following decisions in support of their contentions:

1. 2010-2-L.W.(Crl)1212 Easwaramoorthi and others Vs The Food Inspector Tirunelveli Municipal Corporation
2. In the High Court of Judicature at Madras Crl.O.P.No.9271 of 2008 Bushan Prasad Vs Food Inspector Ambattur Municipality
3. In the High Court of Judicature at Madras Crl.O.P.No.542 of 2008 Bushan Prasad Vs Food Inspector Satyamangalam Municipality 12.The learned Government

Advocate (Criminal Side) appearing for the respondent opposed the contentions of the petitioner/accused and sought for dismissal of the quash petition.

13.In the case on hand, the main allegation in the complaint filed by the respondent against the petitioners/accused A1 to A4 is that they sold the misbranded oil and not labeled in accordance with the http://www.judis.nic.in requirements of section 2(ix)(g) of the Act, and Rule 37 of the Rules, and section 2(ix)(k) of the Act and rule 39 of the rules, hence they are all punishable under section 7(ii) and 16(1) (a)(i) r/w section 2(ix) (g) and (k) and section 2(g) and (k) of the Act.

14.It is to be noted that, as per the report of the public analyst, package should contain the statement of design regarding the ingredients are substance contained therein in order to violate the section 2(ix)(g) of the food adulteration act and also rules 37 and 39 of the prevention of the food adulteration act.

15.This court on reading the entire averments filed in support of the complaint do not indicate that the statement of the public analyst does not disclose in what manner the above statement is misleading or deceive or deceptive in order to violate the above provision. The public analyst should necessarily mention what manner the statement deceive the general public and also in order to substantiate his claim he should necessarily place material in order to prove statement is misleading, but by mere reproducing of the rules he come to a conclusion it is misbranded, which is not at all maintainable in the eye of law. The report is prima facie does not disclose any offence under http://www.judis.nic.in section 2(ix) (g) or rule 37 of the rules.

16.Further it is to be noted that the complaint has been filed by the respondent on 16.9.2009 after long delay of 1 year and 9 months which impliedly affects of the rights of the petitioners/accused to sent the sample to the central food laboratory. In any event, if the trial is commenced on this complaint nothing would be served.

17.In the result, this criminal original petition is allowed and complaint filed by the complainant which is pending in C.C.No.280 of 2009 on the file of the learned Judicial Magistrate No.I, Gobichettipalayam is hereby quashed. Consequently, connected miscellaneous petition is closed.

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